

Himanshu Bhardwaj S/O Shri Mohan Lal ... vs State Of Rajasthan on 30 May, 2019

Author: Pankaj Bhandari

Bench: Pankaj Bhandari

HIGH COURT OF JUDICATURE FOR RAJASTHAN
BENCH AT JAIPUR

S.B. Criminal Miscellaneous (Petition) No. 3382/2019

Himanshu Bhardwaj S/o Shri Mohan Lal Sharma, R/o Plot No. 8,
Chomu Haveli, Gangapole, Jaipur.

----Petitioner

Versus

1. State Of Rajasthan, through PP
2. Smt. Khushbu Sharma W/o Shri Himanshu Bhardwaj, D/o
Late Shri Mahendra Kumar Sharma, Aged About 26 Years,
R/o C-13, Ojhaji Ka Bagh, Gandhi Nagar, Jaipur.

----Respondents

For Petitioner(s) : Mr. Banvari Lal Saini. For Complainant(s) : Mr. Shashi Shekhar Gaur.

For State : Mr. Arvind Kr. Chawla, PP.

HON'BLE MR. JUSTICE PANKAJ BHANDARI

Judgment / Order

30/05/2019

1. Petitioner has preferred this Criminal Misc. Petition under Section 482 Cr.P.C. seeking quashing of proceedings pending before the Additional Civil Judge and Judicial Magistrate No.15, Jaipur Metropolitan in Session Case No.6/2019.

2. It is contended by counsel for the petitioner that parties have entered into a compromise. It is contended that petitioner has already deposited a demand draft before the Family Court. It is contended that an application was moved before the Court below for attesting the compromise. Court below has attested the compromise under Section 406 but as Section 498-A is non-compoundable, the same was not compounded. It is also (2 of 2) [CRLMP-3382/2019] contended that parties have filed an application under Section 32- B of Hindu Marriage Act before the Family Court

3. Complainant alongwith her counsel is present in person in the Court, who has not disputed that fact of parties having entered into a compromise.

4. I have considered the contentions.

5. In view of the fact that parties have entered into a compromise, also the fact that parties have filed an application under Section 32-B of Hindu Marriage Act before the Family Court, the Criminal Misc. Petition is allowed. Offence under Section 498-A is compounded. Stay application stands disposed.

(PANKAJ BHANDARI),J Chandan/138 Powered by TCPDF (www.tcpdf.org)